



ENDING OUR ENGAGEMENT & URGENT REQUEST FOR LOGISTICAL ASSISTANCE – Wilbur Matthee

4 messages

Wilbur William Matthee <wilburmat@gmail.com>
To: Marco van der Walt <marco@schroterlaw.co.za>
Cc: info@whistleblowerhouse.org, support@whistleblowerhouse.org
Bcc: info@ethichawks.co.za

Mon, 02 Mar 2026 at 08:15

Dear Mr. van der Walt (Attn: Schroter Law),

CC: The Whistleblower House (Attn: Tsholofelo),

I am writing to formally end our engagement and I do not wish for you to continue with the evaluation of my case, effective immediately.

To be clear, I am deeply frustrated by the lack of professional care shown toward my matter. My decision is based on the following:

Failure to Address my Security Alert: In my email to you on 20 February at 10:09 AM, I included a specific "Security Note" informing you that my evidence was being tampered with and emails were "vanishing." I explicitly asked you to acknowledge this alert to help secure the paper trail. You ignored this crisis for six days. Even when you finally replied on 26 February, you only acknowledged "receipt of the email"—you completely failed to address or act on the security breach itself.

Unprofessional Communication: You stated you had reviewed my "abundance of documents," yet you then irritated the process by asking questions that were already clearly answered in the bundles I provided. This suggests you were not actually paying attention to the details of my disclosure. To only acknowledge my initial email after you realized you wanted more work from me is unacceptable.

Instructions to Schroter Law:

Please stop all work on my file immediately.

Delete all copies of my evidence and recordings from your systems by 12:00 PM tomorrow.

I have already revoked your access to my Google Drive folders.

TO THE WHISTLEBLOWER HOUSE:

I am writing this to you with a lot of respect and gratitude for your mission. However, after the 10-day silence from appointed counsel to evaluate my case while my evidence was literally disappearing from my inbox, I have realized I must take personal charge of my case to make sure the truth is protected.

I am proceeding as a Litigant in Person at the Labour Court this Thursday, 5 March, to meet the filing deadline. To ensure this "Surgical Strike" is legally solid, I require the House's assistance with the following essential logistics:

Document Preparation: I require assistance with the printing and binding of 4 identical bundles (110 pages each with dividers) to ensure the case is presented in the physical format the Court requires.

Sheriff Fees (3 Respondents): My Founding Affidavit identifies three separate Respondents. I require assistance with the fees for the Sheriff Cape Town West to serve all three entities. I will provide the Sheriff with a "Post-Dated"

instruction to ensure service occurs precisely on 5 March to comply with the mediation cooling-off period.

Travel Logistics: Due to the weight of the bundles and the distance to the CBD, I require secure transport support for the multiple legs of this filing (Home-Court-Sheriff-Court-Home) to ensure the Return of Service is filed on the same day.

I will meticulously document and provide all original receipts for printing, binding, Sheriff fees, and travel to ensure full accountability for these disbursements. I am utilizing the Sheriff's receipt as my proof to obtain my Case Number on Thursday morning.

I remain fully committed to the House and once this urgent filing is secured, I look forward to a re-evaluation and finding a legal partner who understands forensic urgency.

Yours faithfully,

Wilbur Matthee

Specialist Nurse

Marco van der Walt <marco@schroterlaw.co.za>

Mon, 02 Mar 2026 at 08:39

To: Wilbur William Matthee <wilburmat@gmail.com>

Cc: info@whistleblowerhouse.org, support@whistleblowerhouse.org

Dear Wilbur,

Thank you for the below email. I confirm that none of your documents were downloaded from the online drive, and were all viewed online whilst accessing said drive.

Kindly note that we still corresponded on Thursday 26 February 2026 via email (attached), so I am unsure what you mean by 10-days silence.

Lastly, kindly note that all new matters in the Labour Court are not issued in person at the Labour court, but online via the *court online* (<https://www.courtonline.judiciary.org.za/#/ecfsplatform>). You can serve your application papers (with a case number already allocated) via email on the respondents and then file proof thereof on the online system. Accordingly, there is no strict need to print, collate and serve any documents via sheriff (unlike with the High Court), which negates any costs or disbursements. I implore to you to also download and consider the 2024 Labour Court rules which would set out the process you need to follow in the matter (see referrals/statement of claim; rule 11 & onwards).

Yours faithfully,



MARCO VAN DER WALT

Senior Associate & Conveyancer

BComm LLB (NWU)

132 Merriman Street, George Central, George, 6529

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----- Forwarded message -----

From: Marco van der Walt <marco@schroterlaw.co.za>

To: "Wilbur William Matthee" <wilburmat@gmail.com>

Cc:

Bcc:

Date: Thu, 26 Feb 2026 14:20:26 +0200

Subject: RE: CCMA Certificates & Full Narrative Evidence Bundle – Wilbur Matthee

Hi Wilbur,

Thank you for the below.

For further clarity, and in respect of the October 2025 disclosure, does it only relate to the single incident where the one non-adherence letter was sent out, and was this situation subsequently rectified (i.e. could the client then claim their chronic medications)?

Yours faithfully,



MARCO VAN DER WALT

Senior Associate & Conveyancer

BComm LLB (NWU)

132 Merriman Street, George Central, George, 6529

Tel: (044) 874 5372

marco@schroterlaw.co.za | www.schroterlaw.co.za

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From: Wilbur William Matthee <wilburmat@gmail.com>
Sent: Thursday, 26 February 2026 13:09
To: Marco van der Walt <marco@schroterlaw.co.za>
Subject: Re: CCMA Certificates & Full Narrative Evidence Bundle – Wilbur Matthee

Dear Marco,

Thank you for engaging with the materials.

The short answer to your three questions:

1. DATE OF PROTECTED DISCLOSURE:

There are three key protected disclosures forming an escalating pattern, but the dominant one for LRA s187(1)(h) purposes is 23 October 2025 – this is the patient safety disclosure that was immediately labelled "insubordination" and directly triggered the recorded admission of retaliatory motive on 31 October 2025.

2. TO WHOM THEY WERE MADE:

May 2025: Senior Manager Ms Mapule Mashele (formal meeting)

September 2025: Operational Manager, Senior Manager Ms Mashele, HR, and the Union (formal written complaint)

October 2025: Line Manager Ms Mary-Ann Jones (email, Lisa Mari Head of the DMS strategic team copied)

3. EXACT SUBJECT MATTER:

MAY 2025 – FIRST FORMAL DISCLOSURE:

During a formal meeting with Senior Manager Ms Mashele in May 2025, I disclosed two things simultaneously: (1) my psychiatric condition (Severe Major Depressive Disorder and PTSD) with formal specialist report from Dr Jacques Malan, and (2) derogatory conduct and threats made by my line manager Ms Jones, including the March 2025 threat "This is the second time you are questioning me; do not let it happen again."

This placed the employer on formal notice of both my disability and the hostile management conduct. Ms Mashele acknowledged she would "personally apply for special leave." Instead, the employer imposed the most punitive option – unpaid leave – and in July 2025 deducted 40.47% of my gross salary (R14,811.77) in a single pay cycle, in breach of BCEA s34(2)'s 25% statutory cap.

This was occupational detriment directly linked to the May disclosure.

SEPTEMBER 2025 – IDENTITY DISCRIMINATION AND OPERATIONAL SUPPRESSION:

Around the 17 September 2025, I presented a Filtering Strategy to improve operational efficiency in managing clinical case files. The strategy was positively received by the team. Immediately after, on the 23 September 2025 Ms Jones publicly misgendered me as "Wilma" in a team-wide Microsoft Teams channel and, in the same message, banned the filtering system with "NO FILTERING" highlighted in red.

This was not a typographical error. It was a deliberate act of identity-based humiliation directly linked to a professional initiative. The employer's senior manager later dismissed it as a "typo" and claimed we had "never had any previous problem" – directly contradicting the May 2025 formal report of Ms Jones's conduct, the unlawful July deduction, and the documented pattern of hostility.

On 29 September 2025 – the same day I filed a formal discrimination complaint – Ms Jones loaded a double punitive unpaid leave entry to my payroll. This was later reversed by Ms Mashele on 1 October 2025, constituting written evidence that the entry was discretionary, retaliatory, and improper.

OCTOBER 2025 – PATIENT SAFETY DISCLOSURE (DOMINANT FOR LITIGATION):

On 23 October 2025, I disclosed via email to Ms Jones that the Gexus and DMS clinical data platforms were not integrated, causing automated false non-adherence letters to be sent to GEMS members (chronic patients) who were in fact adherent to treatment. This is a systemic patient safety risk and scheme administrator breach of Medical Schemes Act obligations.

Ms Jones instructed me to call the affected 75-year-old patient to "gently probe" adherence despite the known system error. I refused on ethical and professional grounds – calling a patient to question adherence when you know the system data is false is professional misconduct. My refusal was immediately labelled "insubordination."

Eight days later, on 31 October 2025, Ms Jones stated in a recorded meeting: "You made a case of harassment against me so I can make a case of harassment against you." This recorded admission establishes direct causal nexus between protected disclosures and retaliatory intent.

THE PATTERN:

May disclosure → 40.47% illegal deduction in July → September disclosure → public misgendering + retaliatory deduction → October disclosure → "insubordination" label + recorded threat → December defamatory CCMA affidavit

→ constructive dismissal 12 December 2025.

Each disclosure triggered escalating occupational detriment. The October patient safety disclosure is the strongest single thread for litigation because it has the recorded admission, the "insubordination" reframing, and regulatory corroboration (CMS referred to HPCSA; HPCSA referred to SANC; both confirmed it involves professional misconduct). But the May and September disclosures establish the pre-existing pattern that makes the employer's defence untenable.

Marco you have asked (in short). However, this case has complexity, a pattern of retaliation and i do not want to under or over state anything.

Attached is snippets of the recoding between me and Ms Jones.

Yours faithfully,

Wilbur Matthee
Specialist Nurse
PG Dip Health Services Management
BTech General Nursing (Psychiatry, Midwifery & Community Health)

Leadership Roles: Acting Chair – Employee Health & Safety Committee Member – Postgraduate Student Quality Committee

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On Thu, 26 Feb 2026, 11:43 Marco van der Walt, <marco@schroterlaw.co.za> wrote:

Dear Wilbur,

I trust you are doing well.

I confirm that I have considered the abundance of documentation provided.

Kindly advise (in short):

1. The date of your protected disclosure;
2. To whom it was made; and
3. What was the exact subject matter thereof.

Yours faithfully,

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MARCO VAN DER WALT

Senior Associate & Conveyancer

BComm LLB (NWU)

[132 Merriman Street, George Central, George, 6529](#)

Tel: (044) 874 5372

marco@schroterlaw.co.za | www.schroterlaw.co.za

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From: Marco van der Walt <marco@schroterlaw.co.za>

Sent: Friday, 20 February 2026 10:40

To: 'Wilbur William Matthee' <wilburmat@gmail.com>

Subject: RE: CCMA Certificates & Full Narrative Evidence Bundle – Wilbur Matthee

Hi Wilbur,

I confirm receipt.

Yours faithfully,

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Description automatically generated

MARCO VAN DER WALT

Senior Associate & Conveyancer

BComm LLB (NWU)

[132 Merriman Street, George Central, George, 6529](#)

Tel: (044) 874 5372

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From: Wilbur William Matthee <wilburmat@gmail.com>
Sent: Friday, 20 February 2026 10:10
To: Marco@schroterlaw.co.za
Subject: CCMA Certificates & Full Narrative Evidence Bundle – Wilbur Matthee

Dear Marco,

Following our telephone conversation, please find the attached CCMA Certificates of Outcome as requested.

In addition to the formal V11 Statutory Affidavit I sent earlier, I am also providing a Narrative-Based Version of the affidavit. This version is more detailed and contains active links to my Google Drive, which houses the full evidence bundle and all corresponding annexures.

Security Note: As we discussed regarding the "vanishing" emails and the compromise of my digital integrity, please be aware that I am monitoring access to these Drive folders closely. If you have any trouble accessing the links or if you prefer I send the files via a different secure method, please let me know immediately.

Please acknowledge receipt of this email and the attachments, as I am relying on your office to help secure the "paper trail" that is currently being tampered with on my end.

Kind regards,

Wilbur Matthee
Specialist Nurse
PG Dip Health Services Management
BCur Health Nursing Management
BTech General Nursing (Psychiatry, Midwifery & Community Health)

Leadership Roles: Acting Chair – Employee Health & Safety Committee
Member – Postgraduate Student Quality Committee

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RE: CCMA Certificates & Full Narrative Evidence Bundle – Wilbur Matthee.eml

67 KB

Wilbur William Matthee <wilburmat@gmail.com> Mon, 02 Mar 2026 at 08:55
To: Marco van der Walt <marco@schroterlaw.co.za>
Cc: info@whistleblowerhouse.org, support@whistleblowerhouse.org

Dear Mr van der Walt,

Thank you for your response and specifically for the information regarding the court online filing system. This is genuinely useful and I appreciate you taking the time to provide it.

For clarity, my security concern referenced in my email of 20 February related to missing emails from my inbox – not to your firm's handling of my documents specifically. I appreciate your confirmation that documents were viewed online only and not downloaded.

I note your response on 26 February addressed receipt of my email but did not engage the substance of the security alert itself. That was the source of my frustration rather than the timeline.

I will proceed with the court online system as you have advised and will review Rule 11 of the 2024 Labour Court Rules.

Thank you greatly for providing this critical information.

Yours faithfully,
Wilbur
[Quoted text hidden]

2 attachments

-  **image001.png**
11 KB
-  **image002.png**
328 B

Support Whistleblower <support@whistleblowerhouse.org> Tue, 03 Mar 2026 at 18:56
To: Wilbur William Matthee <wilburmat@gmail.com>
Cc: Info <info@whistleblowerhouse.org>, Marco van der Walt <marco@schroterlaw.co.za>

Dear Mr Wibur

Thank you for your email. After careful consideration of your application and based on the reasons outlined by our attorney, we regret to inform you that you do not meet the eligibility criteria for our support services. We are therefore unable to provide assistance in this matter. This decision has been made on the basis of the information available to us and the legal advice received.

Thank you for your understanding and we wish you all the best going forward.

Kind regards,



Tsholofelo Mahlangu

The Whistleblower House

support@whistleblowerhouse.org

[+27 64 524 0241](tel:+27645240241)

www.whistleblowerhouse.org



A MEETING PLACE OF **COURAGE**

From: Wilbur William Matthee <wilburmat@gmail.com>

Date: Monday, 02 March 2026 at 08:15

To: Marco van der Walt <marco@schroterlaw.co.za>

Cc: Info <info@whistleblowerhouse.org>, Support Whistleblower
<support@whistleblowerhouse.org>

Subject: ENDING OUR ENGAGEMENT & URGENT REQUEST FOR LOGISTICAL ASSISTANCE –
Wilbur Matthee

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